Cloud Forensics Challenges in Bangladesh

What the 2025–26 laws give investigators, and what is still missing

Md. Ahsan Kabir

Department of CSE, United International University, Dhaka | mkabir2520016@mscse.uiu.ac.bd

Why cloud evidence is hard

Logs expire. AWS CloudTrail event history shows only 90 days by default.

Courts want proof. Digital records go in through a Section 65B certificate.

Data sits abroad. A treaty request takes 6 weeks to 10 months.

How we looked

782 records found

534 screened

48 full texts

15 included

Plus the laws, read in the original text (Oct 2026).

20-study review (Alshabibi et al. 2024): challenge types

42% technical | 30% resource | 28% legal

At a glance

15 studies reviewed

5 challenge clusters

180 days: longest hold order

0 cloud rules issued*

Laws changed fast

2018
Digital Security Act: first 90-day hold

Nov 2022
Evidence Act: 65A–65B added

Sep 2023
Cyber Security Act 2023

May 2025
Ordinance replaces it

Nov 2025
Data protection ordinance

Apr 2026
Cyber Act 81 and Data Act 63

Jul 2026
Act 99 removes only s.20

The 2023 Act already had the hold order and the evidence rule. They were carried forward.

What the law gives, what it lacks

Investigators have

- ✓ 90-day hold, up to 180 (s. 36)
- ✓ Providers must assist (s. 38)
- ✓ Warrant for traffic data (s. 34)
- ✓ Forensic evidence counts (s. 43)

Still missing

- × Clear reach to foreign cloud firms
- × Model 65B certificate for cloud
- × Cloud forensic rules (s. 49(2))
- × Local-copy rule (dropped in Act 63)

Roadmap: AI-CFRF-BD

Challenge	Legal step	Tool
C1 Short-lived data	Preserve on day one	LLM log triage
C2 Shared infrastructure	Tenant-data guidance	ML artefact sorting
C3 Chain of custody	Model 65B certificate	Hash chain or ledger
C4 Cross-border	Provider channel plus MLAT	Request tracker
C5 Readiness	Cloud rules, s. 49(2)	API acquisition kit

Tool results come from other countries. This is a proposal.

Next steps

1. Say how s. 36 orders reach foreign providers
2. Publish a model 65B certificate for cloud
3. Use s. 49(2) to write cloud forensic rules
4. Copy key logs to storage you control
5. Pilot AI tools on closed cases first

Limits

15 studies, one reviewer. Not legal advice.

Sources: Cyber Security Act 2026 (Act 81), Personal Data Protection Act 2026 (Act 63), Evidence Act 1872 ss. 65A–65B, all on bdlaws.minlaw.gov.bd. *Per the NCSA law list, Oct 2026. Full paper and references from the author.